

MVOA, which included a provision indicating that she could opt out of the AA according to the MVOA's terms. (*Ibid.*) Moreover, Plaintiff has not produced any evidence raising any defense as to the agreement's formation. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Based on the foregoing, Tesla has presented sufficient *prima facie* evidence that Plaintiff assented to the MVOA including the AA, and Plaintiff has failed to present sufficient evidence to rebut that showing. Therefore, a valid agreement to arbitrate exists under the MVOA. And, there is no dispute that the AA covers Plaintiff's claims.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601463	SHAER vs SHAER	DEMURRER ON COMPLAINT

Tentative Ruling: No tentative ruling; appearances are requested, either in person or telephonically. In her Opposition, Plaintiff notes the "parties have since filed for divorce." (Opp. p.2:21.) The motion and Reply do not mention a dissolution proceeding. The parties have not filed a Notice of Related Case that indicates an active family law proceeding is pending. At the hearing, the parties shall be prepared to address whether an active family law matter is pending before any court in any jurisdiction.